

**ADDENDUM OR AMENDMENT TO
PURCHASE AGREEMENT:
SELLER'S RENT BACK AGREEMENT**

This form approved by the Minnesota Association of REALTORS®,
which disclaims any liability arising out of use or misuse of this form.
© 2023 Minnesota Association of REALTORS®

1. Date _____

2. Page 1

3. ☐ **Addendum** ☐ **Amendment** to Purchase Agreement between parties, dated _____
------(Check one.)-----

4. (Date of this Purchase Agreement), pertaining to the purchase and sale of the Property at
5. _____.

6. **NATURE AND PURPOSE:** This Agreement gives Seller the right to remain in and occupy the Property after closing
7. on the purchase of the Property. This Agreement remains in effect after the closing.

8. **POSSESSION DATE:** Seller agrees to deliver possession of the Property to Buyer on or before _____ ☐ **A.M.** ☐ **P.M.**
9. on _____
------(Check one.)-----

10. **SECURITY AND DAMAGE DEPOSIT:** On _____, Seller shall deposit
11. \$ _____ with Buyer in certified funds as a security and damage deposit. The deposit (plus any
12. statutory interest minus all lawful deductions) shall be returned to Seller within the time required by MN Statute
13. 504B.178.

14. **RENT BACK FEE:** Seller shall pay Buyer \$ _____ at closing for the right to occupy the Property
15. beginning on the closing date and continuing through the above possession date. In the event Seller vacates the Property
16. prior to the above possession date, Seller is not entitled to any refund of the Rent Back Fee, unless otherwise agreed
17. to in writing between Buyer and Seller.

18. **UTILITIES:** Seller agrees to continue all utility services in Seller's name and to pay all bills for utility service during
19. the period of Seller's possession, as they become due.

20. **INSURANCE:** Buyer and Seller shall consult with their respective insurance companies before closing. Buyer
21. shall purchase casualty insurance coverage on the Property to be effective from the Closing Date. Seller shall maintain
22. liability insurance for the Property through the date that Seller vacates the Property. Seller is responsible for Seller's
23. personal property insurance. Buyer and Seller shall provide insurance binders at closing.

24. **MAINTENANCE:** Buyer shall be responsible for all repairs and normal maintenance of the Property and personal
25. property covered by the Purchase Agreement from and after the Closing Date. Buyer shall keep the Property in
26. reasonable repair and order. Seller agrees to perform the following repairs and maintenance:

27. _____
28. _____
29. _____
30. _____

31. **USE OF PROPERTY:** During the term of this Agreement, Seller shall occupy the Property as Seller's personal
32. residence and Seller shall not make any changes to the Property. Seller shall not assign nor sublease the Property
33. under this Agreement.

34. **HOLD HARMLESS:** Buyer is not responsible for liabilities, claims, or expenses from Seller's use, possession, and
35. occupancy of the Property.

36. **QUIET ENJOYMENT:** Buyer promises that upon Seller's performance of Seller's obligation in this Agreement, Seller
37. shall peacefully and quietly have, hold, and enjoy the Property according to this Agreement.

MN:SRB-1 (8/23)

**ADDENDUM OR AMENDMENT TO
PURCHASE AGREEMENT:
SELLER'S RENT BACK AGREEMENT**

38. Page 2

39. Property located at _____.

40. **TERMINATION:** If Seller fails to leave the Property and give possession to Buyer on the Possession Date specified
41. on page one (1), Buyer shall provide Seller with seven (7) Calendar Days advance written notice to leave the Property.
42. Notice is considered given on the date mailed to Seller at the above address. Seller shall leave the Property in the same
43. condition as it was at the time of closing. If Seller fails to leave the Property, Buyer is authorized to take any action
44. permitted by law to take possession of the Property. Buyer shall be entitled to recover damages from Seller for Buyer's
45. loss of use in the amount of \$ _____ per day, beginning with the Possession Date specified on
46. page one (1), in addition to all charges and reimbursements stated in this Agreement, and all reasonable costs which
47. result from obtaining possession of the Property and enforcing the terms of the Agreement, including reasonable
48. attorneys' fees.

49. **OTHER:** _____

50. _____

51. _____

52. _____

53. _____

54. _____

55. _____

56. _____

57. _____

58. _____
(Seller) (Date) (Buyer) (Date)

59. _____
(Seller) (Date) (Buyer) (Date)

60. **THIS IS A LEGALLY BINDING CONTRACT BETWEEN BUYER(S) AND SELLER(S).**
61. **IF YOU DESIRE LEGAL OR TAX ADVICE, CONSULT AN APPROPRIATE PROFESSIONAL.**

MN:SRB-2 (8/23)